

		With respect to the merits of Defendant’s request for leave to conduct its IME, the Court finds good cause to be lacking. As noted above, Rendon already conducted a mental examination of Plaintiff through its then-expert at the time, Dr. Lavid. Therefore, Rendon’s statement that it “has not yet exercised his right to an IME,” is not accurate. (Motion at pg. 9.) Furthermore, Rendon’s suggestion that it “can take an IME under Code of Civil Procedure section 2032.220(a) as a matter of right,” is also wrong. Only in a personal injury case can a defendant compel a plaintiff to submit to a <i>physical exam</i> (not a mental exam) without a court order. (Code Civ. Proc., § 2031.220.) Leave of Court is required for a mental examination, and good cause must be shown. (Code Civ. Proc., §§ 2031.310(a); 2032.320(a).) Plaintiff argues that there is good cause because Plaintiff’s expert Dr. Williamson criticized Dr. Lavin’s examination. (Rice Decl., ¶¶ 7, 9, Ex. G, pp. 34:10-38:20; 39:12-40:1.) The disagreement between experts on proper methodology does not constitute good cause. Accordingly, Defendant Rendon’s motion is denied. Plaintiff shall give notice.
11	Nguyen vs. Lim 2023-01335514	Motion to Be Relieved as Counsel of Record Off Calendar as moot. Substitution of Attorney filed.
12	Nour vs. Al-Khanji 2024-01373153	Motions to Be Relieved as Counsel of Record On the motions of the Law Offices of Mark Martinez, by Mark Martinez, counsel of record for defendants (1) Mark El Khanji and (2) Zeina Sous for orders relieving it as counsel for each of Defendants, there are no proofs of service on plaintiff Hansaa Noor in the file. If counsel files a proof of proper service prior to the hearing, the motions will be granted. Otherwise, they will be continued for service of the motion papers on Plaintiff – along with service of notice of continuance on Plaintiff and Defendants. If the required proof of service is filed, the court will interlineate the new trial date into the proposed orders and will signed the amended orders.

		Upon the signing of the orders, counsel shall serve the signed orders on both Defendants and all parties that have appeared. Counsel will be relieved as counsel of record for each of Defendants effective upon the filing of the proofs of service of the signed orders upon both of them and all other parties.
13	Polsky vs. MCAP Holdings, LLC 2022-01287078	Motion to Compel Further Responses to Form Interrogatories / Motion to Compel Production The motion by Plaintiff Andrew Polsky, derivatively on behalf of MCAP Holdings, LLC for an order compelling Defendant MCAP Holdings, LLC (“MCAP”) to provide substantive answers to form interrogatories, set one, and imposing sanctions, jointly and severally against MCAP and its counsel of record, Steve Buchwalter, and the motion by Plaintiff Andrew Polsky for an order compelling MCAP to provide substantive answers to request for production, set one, compelling MCAP to produce documents responsive to the requests, and imposing sanctions, jointly and severally against MCAP and its counsel of record, Steve Buchwalter, are moot. There is no dispute MCAP served supplemental responses to the form interrogatories on June 7, 2026 and to the requests for production on May 22, 2026. There is also no dispute MCAP also produced documents on May 22, 2026. Accordingly, the motions are moot. The Court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2030.300, subd. (d).) The Court “shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).) “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Ct., Rule 3.1348(a).)